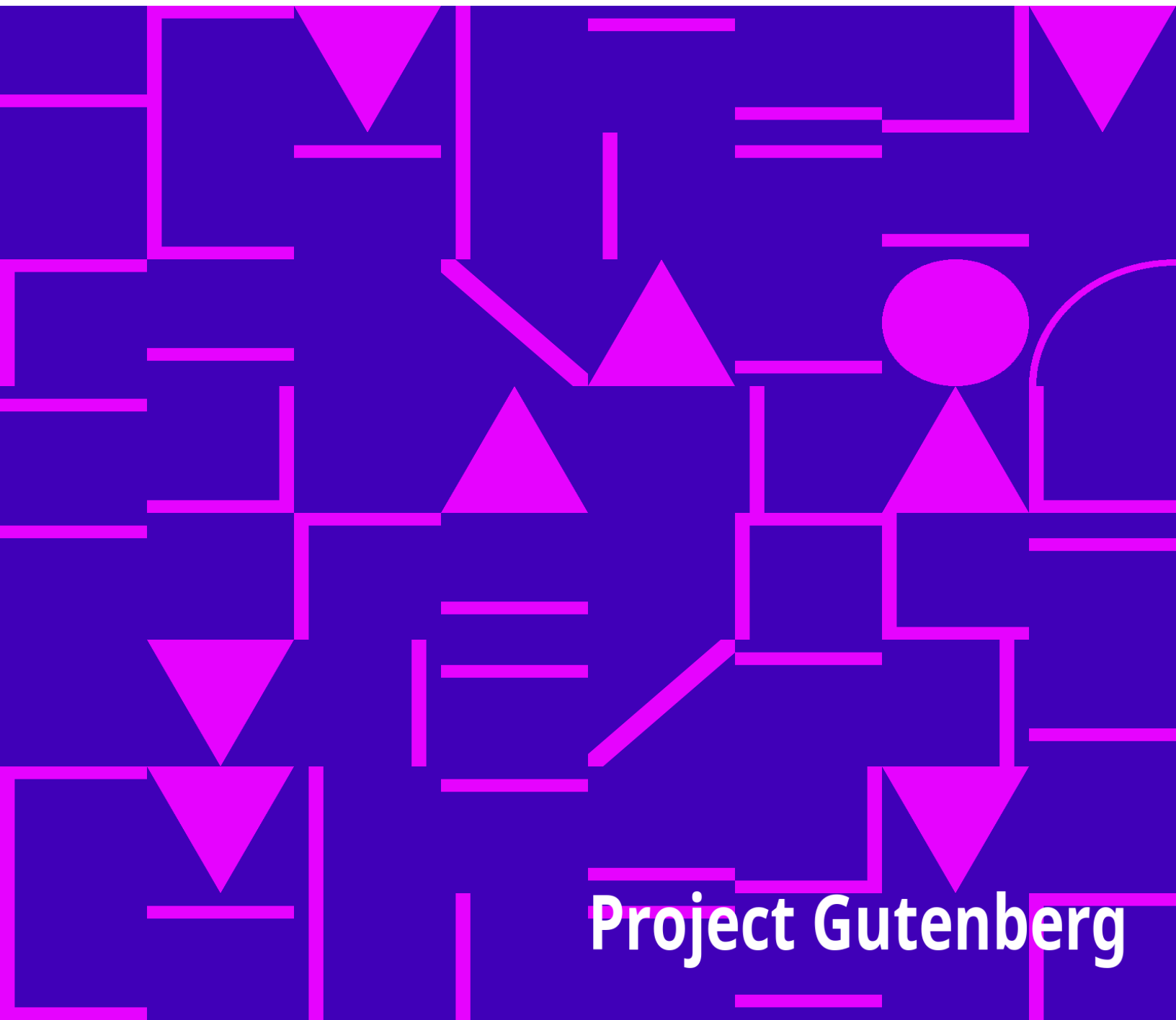


Foster's Letter of Marque: A Tale of Old Sydney

Louis Becke



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LETTER OF MARQUE: A TALE OF OLD SYDNEY ***

FOSTER'S LETTER OF MARQUE

A TALE OF OLD SYDNEY

From “The Tapu Of Banderah and Other Stories”

By Louis Becke

C. Arthur Pearson Ltd.

1901

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I



I

One by one the riding-lights of the few store-ships and whalers lying in Sydney Harbour on an evening in January, 1802, were lit, and as the clear notes of a bugle from the barracks pealed over the bay, followed by the hoarse calls and shrill whistles of the boatswains' mates on a frigate that lay in Sydney Cove, the mate of the *Policy* whaler jumped up from the skylight where he had been lying smoking, and began to pace the deck.

The *Policy* was anchored between the Cove and Pinchgut, ready for sea. The north-easter, which for three days had blown strongly, had now died away, and the placid waters of the harbour shimmered under the starlight of an almost cloudless sky. As the old mate tramped to and fro on the deserted poop, his keen seaman's eye caught sight of some faint grey clouds rising low down in the westward—signs of a south-easterly coming before the morning.

Stepping to the break of the poop, the officer hailed the look-out forward, and asked if he could see the captain's boat coming.

"No, sir," the man replied. "I did see a boat a while ago, and thought it was ours, but it turned out to be one from that Batavian Dutchman anchored below Pinchgut. Her captain always goes ashore about this time."

Swinging round on his heel with an angry exclamation, the mate resumed his walk, muttering and growling to himself as elderly mates do mutter and growl when a captain promises to be on board at five in the afternoon and is not in evidence at half-past seven. Perhaps, too, the knowledge of the particular cause of the captain's delay somewhat added to his chief officer's ill-temper—that cause being a pretty girl; for the mate was a crusty old bachelor, and had but little sympathy with such "tomfoolery."

"Why the devil couldn't he say goodbye to her and be done with it and come aboard," he grumbled, "instead of wasting half a day over it?"

But Mr. Stevenson did not consider that in those days pretty women were not plentiful in Sydney, and virtue was even scarcer than good looks, and Dorothy Gilbert, only daughter of the Deputy Acting Assistant Commissary-General of the penal settlement, possessed all the

qualifications of a lovable woman, and therefore it was not wonderful that Captain Charles Foster had fallen very much in love with her.

Dorothy, of course, had her faults, and her chief one was the rather too great store she set upon being the daughter of an official. Pretty nearly every one in those days of the settlement was either an official or a prisoner or an ex-convict, and the D.A.A.C.G. was of no small importance among the other officials in Sydney. The girl's acquaintance with the young master of the *Policy* began in a very ordinary manner. His ship had been chartered by the Government to take out a cargo of stores to the settlement, and the owners, who were personally acquainted with her father, had given Foster a letter of introduction. This he had used somewhat sooner than he had at first intended, for on presenting himself at the Commissary's office he had caught sight of Dolly's charming face as she stood talking to a young man in the uniform of a sergeant of the New South Wales Regiment who had brought a letter to her father. .

"Thank you, Sergeant," the young lady said with a gracious smile. "Will you present my father's compliments to the Major and say we shall be sure to come. He is not here at present, but cannot delay long, as he will have much business to transact with the master of the ship just come in, and who will doubtless be here very soon."

Just at that moment Foster appeared at the open door, and the young lady, divining at once that he was the person of whom she had just spoken, bowed very prettily, and begging him to be seated whilst she had search made for her father, left the office and disappeared in the living portion of the house, followed by a look of very great interest from Captain Foster. A minute later the Commissary entered the room, and Foster was soon deep in business with Dolly's father, to whom he made himself very agreeable—having a certain object in view.

Their business concluded, the young man rose to go, and not till then—being wise in his generation—did he allude to the fact of his having a private letter of introduction from his owners—Messrs. Hurry Brothers, of London—to Mr. Scarsbrook. The stiff, official manner of the D.A.A.C.G. at once thawed, and being at heart a genial old fellow, he expressed his pleasure, shook hands again with the young man, and inquired why he had not presented the letter or made allusion to it before.

Foster, who had pretty well gauged Mr. Scarsbrook mentally, modestly replied that he did not care to obtrude private affairs at an inopportune time. He knew that weighty affairs doubtless occupied Mr. Scarsbrook's mind during his business hours, but had intended to do himself the honour of presenting his letter later on, &c.

This at once impressed the D.A.A.C.G., who asked him to dinner that evening.

"A most intelligent young man, my dear," he told Dolly shortly after. "His attention to business before all else has given me a very favourable impression of him."

Dolly tossed her head. "I hope I shall not be disappointed in him. Is he young?" she asked indifferently.

"Quite; and in manners and appearance much above his position."

Dolly did like him very much—'much more than she cared to confess to herself—and their first meeting at dinner led to many of a less formal character, and ere a week had passed Captain Charles Foster was very much in love with his host's daughter, and not being a man who wasted time, was only awaiting an opportunity to tell her so.

Now Dolly, who had first flirted with and then flouted every one of the bachelor officials in Sydney, military or civilian, who visited the Commissary's abode, was, to do her justice, a girl of sense at heart, and she felt that Captain Foster meant to ask her an all-important question—to every woman—and that her answer would be "Yes." For not only was he young, handsome, and highly thought of by his owners, but he came of a good family, and had such prospects for his future as seldom came in the way of men in the merchant service even in those days of lucky South-Seamen and East India traders, who made fortunes rapidly. And then 'twas evident he was very much in love with her, and this latter fact considerably and naturally influenced her.

The first week passed pleasantly enough, then, to his anger and disgust, Foster found he had a rival; and before the end of the second week he realised, or imagined so, that he was beaten in the field of love—by a Dutchman!

Sergeant Harry Burt was the first to give him warning, for he was often on duty at or near the Commissary's quarters, and, indeed, had often taken

notes from Foster to the fair Dolly. He showed a warm interest in the matter, for Foster was always polite to the sergeant, and did not turn up his nose at “soldier men,” as other masters of ships were but too ready to do.

It had so happened that the work of discharging his ship had kept Foster very busy during the second week of his stay, and he had paid but one evening visit to Dolly and her father, and was hurrying the cargo ashore with feverish eagerness. Once that was accomplished, he meant to devote himself (1) to proposing to the young lady, (2) gaining her father's consent, and (3) getting to sea again as soon as possible, making a good cruise at the whale fishery, and returning to Sydney within two years as master and owner of a ship of his own. Consequently, Burt's news gave him considerable disquietude.

“Who did you say he was, Sergeant?” he asked gloomily; “a Dutchman?”

“Yes, sir; he's the master of that Dutch Batavian ship that has brought stores from Batavia. Mr. Scarsbrook seems to make a lot of him of late, and he's always coming up to the Commissary's place. And if he sees Miss Scarsbrook out in the garden he swaggers in after her as if he were an admiral of the fleet Portveldt's his name, and—and——”

“And what, Sergeant?”

“Well, I think Miss Scarsbrook rather likes him, that's all. You see, sir, you haven't been there for a week, and this young Dutchman is by no means bad-looking, and even our Major says he's a jolly fine fellow—and all that goes a long way with women, you know. Then you only visit the house once in a week; the Dutchman goes there every day, and every time he comes he brings his boatswain with him—a big, greasy-faced chap. Last night he followed his master, carrying a cheese—a present for the Commissary, I suppose.”

“Well, I shall soon see how the land lies, Sergeant I'm going ashore presently, and I can promise you it won't be my fault if I let this fellow get to windward of me.”

But Miss Dolly was not to be seen that day, nor yet on the following one. She was vexed at Foster having thought of his work before herself, and she had determined to punish him by not meeting him for some little time, and amuse herself with the handsome young Dutch sailor meanwhile. So, in no very amiable mood, Foster went back to his ship, finished discharging, and delighted his old mate by telling him to get ready for sea as quickly as

possible. And on this particular evening when our story opens the *Policy* only waited for her captain—who had gone ashore—so he told Stevenson—to say goodbye to the Commissary, with parting instructions to the mate to begin to heave up as soon as he saw his (Foster's) boat leave the Cove.

After spending half an hour with the Commissary, Foster asked to see Miss Dorothy, and was soon ushered into the sitting-room, where the young lady welcomed him effusively, and her manner soon drove all suspicious thoughts of his rival out of his mind. Her mother, a placid lady, who was absolutely ruled by Dolly and her father, smiled approval when Foster asked her daughter to accompany him to the garden and take a look at the harbour. She liked him, and had previously given him much assistance by getting out of the way whenever she suspected he wanted to see Dolly alone.

As soon as they had gained the screen of the shaded path leading to the water's edge, Foster came to the point at once.

“Dolly,” he said, “you know why I have asked you to come with me here. My ship is ready for sea, and it may be quite two years before I shall have the happiness of seeing you again.”

“’Tis very kind of you to pay me so pretty a compliment, Captain Foster—or I should say Mr. Foster,” said Dolly, concealing a smile; “but surely you need not have brought me out to the garden to tell me this.”

Her pretended forgetfulness of some past passages in their brief acquaintance, as her speech implied, ruffled him.

“You are very particular with your *Mr.* Foster, Miss Dolly; and why not ‘Captain’?”

Dolly raised her eyebrows in surprise.

“Captains hold the King's commission and fight for their country,” she said demurely. “The master of a horrid ship that goes catching whales has no right to the title.” Then she laughed and shook her long, fair curls.

“Upon my word, young lady, you are very complimentary; but, Dolly, no more of this banter. My boat is waiting, and I have but a few minutes to ask you to give me your answer. In all seriousness remember that my future depends upon it. Will you marry me? Will you try to love me? May I go away with the hope that you will look forward to my return, and——”

“In all seriousness, Mr. Foster, I will not.”

“Why, what have I done to offend you? I thought you—I thought that I ——” and then, getting somewhat confused and angry at the same time at Dolly's nonchalant manner, he wound up with, “I believe that damned Dutchman has come between us!”

“How dare you swear at me, sir? I suppose, though, it is the custom for captains in the merchant service to swear at ladies. And what right have you to assume that I should marry you? Because I rather liked to talk to you when I felt dull, is that any reason why you should be so very rude to me? And once for all, sir, I shall never marry a mere merchant sailor—a common whaling master. I shall marry, when I do marry, an officer and a gentleman in the King's service.”

“Ah!” Foster snapped, “and what about the Dutchman?”

Now up to this point Dolly had been making mere pretence. She honestly loved the young seaman, and meant to tell him so plainly before he left the garden, but at this last question the merriment he had failed to see in her eyes gave place to an angry sparkle, and she quickly retorted—

“Mr. Portveldt, sir, is a Dutch gentleman, and he would never talk to me in such a way as you have done. How dare you, sir!”

Foster was really angry now, and smiled sarcastically. “He's but the master of a merchantman, and an infernal Dutchman at that.”

“He is a gentleman, which you are not!” snapped Dolly fiercely; “and if he is but a merchant skipper, he commands his own ship. He is a shipowner, and a well-known Batavian merchant as well, sir; so there!”

“So I believe,” said Foster wrathfully; “sells Dutch cheeses and brings them ashore with him.”

“You're a spy,” said Dolly contemptuously.

“Very well, Miss Scarsbrook, call me what you please. I can see your cheese merchant waddling this way now, attended by his ugly pirate of a boatswain. Doubtless he has some stock-fish on this occasion, and as stock-fish are very much like Dutchmen in one respect and I like neither, I wish you joy of him. Goodbye!” And Captain Foster swung on his heel and walked quickly out of the garden gate. As he strode down the narrow path he brushed past the Batavian merchant, who was on his way to the Commissary's office.

“Goot tay to you, Captain Foster,” said Port-veldt, grinning amiably.

“Go to the devil!” replied the Englishman promptly, turning round and facing the Dutchman to give due emphasis to his remark.

Portveldt, a tall, well-made fellow, and handsomely dressed, stared at Foster's retreating figure in angry astonishment, then changing his mind about first visiting the Commissary, he opened the garden gate, and came suddenly upon Dorothy Scarsbrook seated upon a rustic bench, weeping bitterly.

“My tear yong lady, vat is de matter? I beg you to led me gomfort you.”

“There is nothing the matter, Mr. Portveldt I thank you, but you cannot be of any service to me,” and Dolly buried her face in her handkerchief again.

“I am sorry ferry mooch to hear you say dat, Mees Dorotee, vor it vas mein hop dot you would dake kindly to me.”

Dolly made no answer, and then Captain Portveldt sat down beside her, his huge figure quite filling up all the remaining space.

“Mees Dorotee,” he began ponderously, “de trood is dot I vas goming to see you to dell you I vas ferry mooch in loaf mid you, und to ask you to be mein vifes; but now dot you do veep so mooch, I——”

“Say no more if you please, Mr. Portveldt,” said Dolly, hastily drying her eyes. Then, rising with great dignity, she bowed and went on: “Of course I am deeply sensible of the great honour that you do me, but I can never be your wife.” And then to herself: “I fancy that I have replied in a very proper manner.”

“Vy, vat vas der wrong about me, Mees Dorotee?” pleaded Portveldt “I vas feery yoyful in mein mind tinkng dot you did loaf me some liddle bid. I have mooch money; mein haus in Batavia is mosd peautiful, und you shall have plendy servands to do all dot you vish. Oh, Mees Dorotee! vat can be wrong mid me?”

“There is nothing that I object to in you, sir, except that I do not love you. Really you cannot expect me to marry you because I have seen you half a dozen times and have treated you with politeness.”

“I do hobe, Mees Dorotee, dot id is not because of dot yong mans who vas so oncivil to me yoost now dot you vill not haf me. He vas dell me to go to der tuyvel ven I did say 'goot morning' yoost now.”

“It is no young man, sir. Mr. Foster is a person for whom I have a great regard, but I do not intend to marry him. I will only marry a gentleman.

“Oh, bud, Mees Dorotee, am I not a yentle-mans?”

“I do not consider masters of merchantmen gentlemen,” replied Dolly with a slight sniff. “My father is an officer in the King's service, and I have been taught to——”

“Ha, ha! Mees Dorotee,” laughed Portveldt good-humouredly, “dot is nod so. Your baba is but a gommissary who puyt de goots vich I bring me from Batavia to sell.”

“How dare you talk like that, sir? My father is a King's officer, and before he came here he fought for his country.”

“Veil, Mees Dorotee, I do beg your pardon mooch, and I vill vight vor mein country if you vil learn to loaf me on dot account.”

But Miss Dolly would listen no more, and, with a ceremonious bow, walked away. Then the Dutch merchant went to the Commissary's office to talk the matter over with her father, who told him that he would not interfere in his daughter's choice; if he could not make himself agreeable to her, neither her father nor mother could help him.

Just after sunrise next morning, Dolly, who had spent the night in tears and repentance, woke, feeling very miserable. From her opened window she could see the morning mists hanging over the placid waters of the harbour disappearing before the first breaths of the coming south-easter. The *Policy*, she thought, could not have sailed yet, and she meant to send her lover a note, asking him to come and see her again before he left. Then she gave a little cry and sob, and her eyes filled with tears. Far down the harbour she could see the sails of the *Policy* just disappearing round a wooded headland.

An hour or so after breakfast, as Dolly was at work among her flowers, the tall figure of Sergeant Burt stood before her, and saluted—

“The *Policy* has sailed, Miss Scarsbrook,” said the Sergeant, “and I have brought you a letter.”

“Indeed!” said Dolly, with an air of icy indifference, turning her back upon the soldier, and digging her trowel into a little heap of soil. “I do not take any interest in merchant ships, and do not want the letter.” When she glanced round again she was just in time to see Sergeant Burt standing in the roadway with a lot of tiny pieces of paper fluttering about his feet.

Something impelled her to ask: “What are you doing, Burt?”

“Mr. Foster's orders, Miss. Told me if you would not take the letter I was to destroy it.”

Dolly laid her trowel down and slowly went to her room “with a bad headache,” as she told her mother.

II

Nearly two years went by, and then one morning the look-out at the South Head of Sydney Harbour signalled a vessel to the north-east, and a few hours later the *Policy* was again at anchor in Sydney Cove, and Captain Foster was being warmly welcomed by the residents generally and Dolly's father in particular, who pressed him to come ashore that evening to dinner.

Among the first to board the *Policy* was Sergeant Burt, who, as soon as the others had left, was in deep converse with Captain Foster. "I'm sure she meant to take your letter, Mr. Foster," he said finally, "and that I was too quick in tearing it up."

"I'll soon know, Burt; I'll try again this evening."

At the Commissary's dinner that evening Dolly met him with a charming smile and cheeks suffused; and then, after Captain Foster had narrated the incidents of his successful whaling voyage, her parents discreetly left them to themselves in the garden.

"Dolly! I am a rough, uncultured sailor. Will you therefore forgive me my rudeness when we last parted?"

"Of course. I have forgotten it long ago, and I am very sorry we parted bad friends."

"You make me very happy, Dolly. I have been speaking to your mother, and she has told me that she thinks you do care for me, Is it so? May I again _____"

"Now, Captain Foster, why cannot we be friends without—without anything else. I will not pretend that I do not understand your meaning, but I tell you, once and for all, I don't want to be married. Really," and she smiled brightly, "you are as bad as Mr. Portveldt."

"Very well, Miss Dorothy," said Foster with annoying equanimity, "I won't allude to the subject again. But what has the Dutchman been doing? Where is he now?"

Dolly laughed merrily. "Oh, Captain Foster, I really have no right to show you this letter, but it is so very amusing that I cannot help doing so,"

and she took a letter from her pocket.

“Oh, he has been writing to you, has he?”

“Now don't speak in that bullying manner, sir, or I shall not let you hear its contents.”

“Very well, Dolly; but how came you to get the letter? We are at war with the Dutch Settlements now, you know.”

“That is the amusing part of it. Now listen, and I will read it to you;” and Dolly spread out a large sheet of paper, and read aloud in mimicking tones

“Mein dear Mees Dolly,—You did vant ein loafer who could vight vor his coundry, and vould haf no man who vas yoost ein merchant. Very goot. I mineself now command the privateer *Swift*, vich vas used to be sailing in gompany mit *La Brave* und *La Mouche* in der service of der French Republic, und did den vight und beat all der Anglische ships in der Anglische Channel. Id is drue dot your *La Minerve* did by shance von tay capture der *Swift*, and sold her to the American beoples, but our Batavian merchants did buy her from them, und now I haf god de command. Und now dot your goundrymens do annoys der Deutsche Settlements in our Easd Indies, ve do mean to beat dem every dimes ve cadgh dem in dese zees. Und I do send mein ledder to you, mein tear Mees Dorotee, by der greasy old vale-ship *Mary Ann*, yoost to led you know dot I haf not vorgotten you mid your bride eye. Und ven I haf gaptured all der Anglische ships in der East Indies I vill sail mein *Swift* to Sydney and claim you vor mein vrau, und do you nod be vrightened. I vill dake care dot you und your people shall not be hurt, because I do loaf you ferry mooch. Der master of der *Mary Ann* vill dell you I vas ferry goot to him for your sake. I did but take his gargo, and did give him und his grew liberdy to go to Sydney und dake this letter to you, mein vrau, in der dime to gom, as I did dell him.—I remain your loafing Richard Portveldt.”

Foster jumped to his feet “The rascally Dutch swab, to dare to——”

“To dare to write to me,” said Dolly laughingly.

“To dare to write to you! To suppose for one moment that you—oh, d—— the fellow! If I come across him, I'll——”

“But all the same, he's very brave,” said Dolly demurely; “he is fighting for his country, you know.”

“The boasting fool!” ejaculated Foster contemptuously.

“But he *is* captain of the *Swift*, and the *Swift* *did* beat some of the English ships. I have heard my father say that.”

“Oh, yes. Three privateers did manage to cut off some of our little despatch vessels in the Channel; but this fat Dutchman, Portveldt, had no hand in it.”

“But this ‘fat Dutchman, Portveldt, *did* capture the *Mary Ann*, and her master *did* give me this letter, and—and I was so angry.”

“The master of the *Mary Ann* must have been a fool.”

“Why so—for merely executing a commission? But wait, there is a postscript that will interest you particularly. Now listen while I read it,” and Dolly, again mimicking Portveldt's English, read—

“Dell dot oncivil yong mans Voster who vas dell me to go to ter tuyvel, dot I vill sendt der *Bolicy* und her master mit der grew to der tuyvel if he gomes mein vay mit his zeep.”

“Now, Captain Foster, what do you think of that, pray?”

“Very pretty talk; what do *you* think of it?”

“Well, I'm only a poor little woman; but if I were a man I would——”

“Exactly so, Dolly. Well, I am a man, and the *Policy* has brought a letter of marque with her from England this time, and so I may meet——”

“Oh, Captain Foster!” and Dolly's eyes brightened, “I *am* glad; but—but—*please*, for my sake, don't get killed.”

A fortnight later, when Foster bade Dolly goodbye for another six months, she told him softly that she would be glad—oh, so very glad!—to hear news of him. A whaling voyage was so very dangerous, and he might get hurt or killed.

And this time, as the *Policy* sailed and Foster saw Dolly waving to him from the steps of the Commissary's office, he felt pretty sure that the letter of marque had advanced his suit considerably.

Fourteen days out from Sydney the *Policy* took her first whale, greatly to the delight of old Stevenson and the crew, who looked upon such early luck as a certain indication of a good cruise. After “trying-out” Foster kept on to the northward to the sperm-whaling grounds in the Moluccas. Three days

later they spoke the *Endicott*, of Nantucket, whose captain gave Foster a kindly warning not to go cruising further north, for there were several Batavian privateers looking out for the English whalers that were then due on the cruising ground. Then the American wished him luck and goodbye.

Old Stevenson's face fell; then he swore. "I suppose we have to turn tail, sir, and try what we can do to the southward and I believe we'd be a full ship in three months or less up in the Moluccas."

"So do I, and I'm going there."

"But it's dangerous waters, sir; we don't want to lose the ship and rot in prison in Batavia."

"Mr. Stevenson, I am an Englishman, and Hurry Brothers did not get a letter of marque for this ship for nothing. You ought to know that to turn back means an empty ship. It is our duty to go to our proper cruising ground and cruise till we are a full ship; and all the infernal Dutchmen in the world mustn't frighten us."

"Very good, sir," said the old mate cheerfully, "but, all the same, I don't want us to get served like that fellow Portveldt served the old *Mary Ann*."

Another five weeks passed. So far, "greasy" luck had attended the *Policy* for she had taken sixteen more sperm whales, the last of which was killed in about 8° S. and 120° E., in the Flores Sea. But misfortune had come upon the ship in other respects, and Foster was in no small anxiety about his crew, nearly all of whom were ill from lead-poisoning. This had been brought about by drinking water from leaden tanks in which oil had once been stored.

A bright look-out was kept, for the ship was now right in the spot where it was likely she might meet with the Dutch privateers.

It was Stevenson's watch, and as he walked the poop he stopped suddenly, for the look-out reported a sail to the W.S.W. Foster came on deck at once and went aloft. In a quarter of an hour it was evident that the stranger bore towards them. The wind was south-east, and very little of it.

"What are you going to do?" asked the mate. "I fancy this is one of the Dutchmen who are on the look-out for us."

"So do I," answered Foster, "I'll tell you what I am going to do: brace sharp up on the larboard tack and run down to her. I am not going to run away from *one* infernal Dutchman, and I can only see one of 'em."

“You're captain of the ship, and you can do as you please; but I am hanged if I think you'll pull it off this time. Half the crew are sick, and this fellow looks as if he meant fighting.”

“All hands on deck; starboard forebrace!” was all the answer Foster made. Then he went to the signal locker, and getting out the American ensign, with his own hands ran it up to the peak, hoping by this means to get close enough to the other ship to prevent *her* from running away from a fight, if the captain should turn out not one of the fighting sort.

As soon as the sails were trimmed the skipper walked to the break of the poop, and, with the air of a captain of a seventy-four, gave the order, “Clear ship for action!”

Then the mate ventured to remark that half of the guns were down below on the 'tween decks, where they had been put out of the way for the generally peaceful occupation of whaling.

“Well, get 'm up. What the devil do you think I mean by clearing for action?”

Accordingly, the six-pounders were hoisted upon deck and quickly mounted, what little powder and shot the *Policy* carried was brought into a handy place, and the mate, with something of a smile, reported, “Ship cleared for action, sir.”

“Very good, Mr. Stevenson. Now, my lads, I reckon this ship is one of the Dutch fleet sent to clear us whalers out of these seas. Well, as he seems to be alone, I think we have a fair chance of turning the tables upon him. Anyhow, I am going to try. I know some of you are pretty sick, but I am sure that a crew of English sailors, even when they are sick, can lick twice their number of muddle-headed Dutchmen any day.”

In those days, British ships were manned by British seaman, and Captain Foster could talk like this without saying anything offensive to the British merchant service. Nowadays such an observation about “Dutchmen” would be a personal insult to four-fifths of the crew of a British merchant ship.

The men, including the mate, received the speech with a cheer, and one of them sang out “Haul down the Stars and Stripes. We don't want to fight under that.”

To which Captain Foster, who knew what he was about, merely replied, “I am not a fool!”

Towards the close of the afternoon the ships were within gunshot of each other, and the Dutchman ran up his colours. As they drew closer, the foreign skipper's glass showed him the nationality of the *Policy* and he at once opened fire upon her with one of his six eighteen-pounders.

As the shot hummed overhead between the *Policy's* fore and main masts, down came the American colours and up went the British ensign, and at the same moment Foster fired such of his guns as bore upon the enemy.

As soon as the report of the guns had died away, Foster sprang into one of his quarter-boats and hailed the other ship.

“Ship ahoy!” he roared “why do you fire at me?”

“Ha, ha! I know you,” came back in mocking tones. “Now vill I sendt you to der tuyvel, you greasy valer mans. I am Captain Portveldt, und dis is der *Swift*. Vill you surrunder, or vill I smash you to beices?”

For answer, Foster, who had now come very close to his enemy, fired his tiny broadside, his men, sick as they were running cheerfully from the guns to the braces to manoeuvre the *Polity* clear of the privateer's fire, and then back again to the guns.

The sun had now set, but far into the darkness of the tropical night the running fight continued, Foster always out-manouvring the Dutchman, and the crews of both vessels, when they closed near enough to be heard, cursing and mocking at each other. Owing to the darkness and the extremely bad gunnery on both sides, little blood was spilt, and the damage done was mostly confined to the sails and rigging. Now and then a eighteen-pound shot hulled the *Policy*, and one went clean through her amidships. Suddenly, for some cause or other, about midnight, a light was shown in the privateer's stern, and Foster's second mate at once sent a lucky shot at it, with the result that the six-pound ball so damaged the *Swift's* rudder that she became unmanageable. And then, a few minutes later, another shot dismounted one of her guns by striking it on the muzzle, and ere the Dutchman's crew knew what was happening, a final broadside from the whaler brought down her two topsails and did other damage aloft. That practically ended the battle.

So thought Captain Portveldt, who now hailed the *Policy* in not quite so boastful a voice as when the vessels met earlier in the day.

“Captain Voster, I haf hauled down mein flag. Mein grew will vight no more, and I must surrender.”

A cheer broke from the whaler's crew.

“Very well, Captain Portveldt,” called out Foster; “lower a boat, and come on board with half your crew. But don't try on any boarding tricks, or you will be the worse for it.”

The meeting between the two skippers, notwithstanding the cause, was good-humoured enough, for Portveldt, apart from his boastfulness, was not a bad fellow.

“Veil, Captain Voster,” he said as he stepped on board the *Policy's* deck, followed by his big boatswain (who was wounded in the face by a splinter) and half his crew, “you haf broved der besd mans; und now I suppose you vill lead me like a liddle dog mit a sdring, und dake me to Sydney und make vun mit der young lady about me.”

“No, no,” answered Foster, “I am not so bad as all that Come below and have a glass of grog.”

At daylight one morning some weeks later two ships appeared in sight off Sydney Heads. Those who were on the look-out were alarmed, for it was seen that both vessels were armed, and it was conjectured that the ships must be part of an enemy's squadron which had determined to make an attack upon the settlement of Port Jackson.

In a very short time an excited crowd gathered together along the line of cliffs of the outer South Head, each one asking his fellow what was to be done. Horsemen carried the news into Sydney, and every moment fresh numbers arrived to swell the crowd of spectators on the cliffs. A strange sight they must have presented, comprising, as they did, all sorts and conditions of men—settlers, naval and military officers, soldiers of the New South Wales Regiment, and a number of the better class of convicts.

Of course the Deputy Acting Assistant Commissary-General was among the officers anxiously watching the ships from the heights that overlooked the harbour, and with him were Dolly and her mother.

Presently Dolly, catching sight of her father's anxious face, began to cry, and turned to her mother. “Ah!” she said “it has all come true, and he has come to destroy the settlement!”

“What has come true, and who is going to destroy the settlement?” said her father sharply. And then Dolly, feeling very frightened and miserable, told him of Portveldt's letter, the receipt of which she had concealed from every one but Foster. The D.A.A.C.G. laughed at first, but then added, “but all the same, though 'twas but empty bluster, I had better tell his Excellency about it; it is just possible that the Dutch have planned an expedition against us.”

At half-past ten, in response to a signal made from the look-out at South Head by the officer in charge there, his Excellency Governor King sent Lieutenant Houston, of his Majesty's ship *Investigator*, then anchored in Sydney Cove, to the naval officer in command at South Head.

The *Investigator* was Flinders' ship, the gallant old tub of 334 tons which surveyed a great part of the northern coast, and was at the time of which we write lying rotting in Sydney, condemned after completing her second voyage of discovery in June, 1803.

Then the Governor was told of Dolly's letter, but he was not the man to take fright at the approach of the enemy, although he had no defence force as it is now understood in New South Wales, nor had he a gold-laced staff of officers with elaborate “defence schemes” against possible raids of Japanese or Russians by way of Exmouth Gulf or Port Darwin.

In that year Governor King's force did not take long to be marshalled. The drums beat to arms, and the New South Wales Corps and the Loyal Association immediately formed into line on the shores of the Cove.

At eleven o'clock a trooper arrived at Government House with intelligence that one of the vessels appeared under British colours, and the other was flying a Union Jack triumphant over a Dutch Jack. Following this message there soon came another, bringing the certain intelligence that one of the ships was an English whaler bringing into port her Batavian prize. So on receipt of this news, and just as the word to march was about to be given, the officer in command ordered his force to return to barracks.

At two in the afternoon, with the whole of the settlement agog with excitement, the two vessels sailed slowly up the harbour before a light northeast breeze, and came to anchor in Sydney Cove, close to the *Investigator*, on board of which ship the Governor and a number of naval officers awaited their arrival. For once discipline was relaxed, and Captain King had good-naturedly permitted the townspeople to throng on board to

learn all the news about the *Policy's* prize. As Captain Foster made his way to the quarter-deck, he saw that behind the Governor and his staff were Dolly and her parents and several ladies.

In a very few minutes he made his report, and the Governor again shook his hand warmly; but the look in Dolly's eyes and the pressure of her hand were the young seaman's sweetest reward, for it told him that she had surrendered.

Then, returning to his own ship, he was warmly greeted by Sergeant Burt, and for a few moments the two remained talking in the whaler's cabin. Then, just as Foster was ready to go ashore, Mr. Scarsbrook, who had been inspecting the captured privateer, came on board, bringing Dolly with him.

Whilst they were all chatting merrily together Captain Portveldt made his appearance, and with the most perfect *sang-froid* saluted Dolly and her father.

“Veil, Mees Dorotee, you see I have come back, at der blessing invidadion of mein goot friendt, Captain Voster here, und I do vish him mit you blendy of habbiness.”

And Dolly, who at first meant to meet him with a sarcastic little speech, felt her eyes fill with tears at the manly way in which he bore his misfortune, and could only falter out some few words of consolation. Then there was a Prize Court, and—

“Mr. Charles Sparrow Foster, commander of the whaler and letter of marque called the *Policy*, presented to the Court a memorial stating his capture of the *Swift* on the 12th day of September, off the island of Flores, she being under Dutch colours... and the property of subjects of a Power at war with his Britannic Majesty, and praying also that the Court would be pleased to grant an award of condemnation in his favour in order that the said prize should be for the advantage of himself, his owners, and his ship's company.”

and the Court having heard confirmatory evidence from Richard Portveldt, a subject of the Batavian Republic, to the effect—

“That he commanded the *Swift*; that everything on board of her was Dutch property, and she belonged to Messrs. Winy and Talman, of Batavia, and himself, all of whom were residents of Batavia, who purchased her for the sum of 18,000 dols.: that she was taken up by the Dutch East India

Company at Batavia; and was on her way thither when she was captured by the *Policy*, &c.”—

accordingly condemned the prize, which was advertised in the *Sydney Gazette* for sale by auction, Mr. Lord, the auctioneer, setting forth that he would sell—

“At his warehouse, Sydney, at noon precisely, the 3rd of November, the good ship *Swift*, prize to *Policy*, Charles Foster, commander. French built in the year 1800. Was condemned a prize to his Majesty's ship *La Minerva*, and sold in 1801 to the Americans, as appears by the bill of sale, and by them sold to the Dutch at Batavia, where she was examined, copper-bolted, and new coppered in August, 1802. It is unnecessary to say anything respecting the properties of the *Swift* further than that she was the companion of *La Brave* and *La Mouche*, which so very much harassed the British in Europe, and set all our cruisers at defiance until her capture, prior to which she was justly celebrated as the fastest sailing-vessel the French Republic had.”

The prize was knocked down for £3,000, and Captain Foster's share was spent in a handsome wedding present for Dolly, which, at her particular request, took the form of a passage to Batavia and a hundred guineas delivered to Captain Portveldt immediately after the marriage ceremony.

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